

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandra Carl
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 03, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-01642	Wells Fargo Bank, N.A. vs. Stefannie Rivas
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Motion for Summary Judgment or in the Alternative Summary Adjudication

The unopposed motion for summary judgment by plaintiff Wells Fargo Bank, N.A. is GRANTED. Upon consideration of all the evidence set forth in the papers, including the declaration of plaintiff's Loan Workout Specialist Betsi L. Gibbons authenticating business records supporting Plaintiff's undisputed material facts, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its cause of action for breach of contract. The burden therefore shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet her burden.

In light of the Court's ruling on the motion for summary judgment, it is unnecessary to rule on Plaintiff's alternative motion for summary adjudication as to the sole cause of action for breach of contract.

Judgment shall be entered for Plaintiff and against Defendant Stefannie Rivas. The Court will sign the proposed order lodged with the moving papers. Plaintiff is entitled to recover reasonable attorney's fees and costs according to proof in accordance with rule 3.1702 of the California Rules of Court and Civil Code section 1717. Plaintiff is ordered to

prepare a proposed judgment, submit a cost memorandum and submit a declaration in support of a motion for reasonable attorney's fees.

The case management conference scheduled for September 11, 2026, is vacated.

25CV-02823 Edelmira Leon vs. Jorge Perez

Order of Examination – Jorge Perez

Appearance required.

25CV-03976 Chandra Martinez vs. Marisela Duran

Citation to Appear on Civil Bench Warrant – Marisela Duran

Appearance required.

26CV-01826 Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
